

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1-2	24CV447032	Thanh Tran et.al. vs. American Honda Motor Company	Defendant petitions this court to compel depositions for Plaintiff's experts or, in the alternative, preclude all of Plaintiff's previously designated experts from testifying. On the date of Plaintiff's opposition deadline, Plaintiff's counsel de-designated expert witnesses Thomas Lepper, Darrel Blasjo, Randall Bounds, and Dennis McDonald. Plaintiff offered a date for deposition for expert Aaron Sims. Court notes that the de-designations and the offer of a deposition date for expert Sims occurred well after Defendant had filed its motion to compel. Court will preclude Thomas Lepper, Darrel Blasjo, Randall Bounds, and Dennis McDonald from testifying. The court will order Mr. Aaron Sims to be available for deposition within fourteen days of the date of this order. Motion for sanctions in the amount of \$2,524.00 is GRANTED.
9:00 3	25CV461924	Bank of America, N.A. vs Srinivas Pucha	Plaintiff moves this court to deem matters in Plaintiff's request for admissions as admissions of truth. Plaintiff served a request for admissions. Defendant failed to respond. Plaintiff filed this motion on April 10, 2026. Defendant failed to file an objection. Plaintiff's motion is GRANTED.
9:00 4	25CV467112	Ahmad Tamkin, et.al. vs Tesla, Inc.	See below.
9:00 5-6	26CV484107	Mezzetti Financial Services vs. New Montrachett, LLC.	Court file does not show that an opposition was filed, yet there is a reply brief opposing opposition. Court needs clarification from parties. Case will be continued.
9:00 7	26CV489655	Santa Clara Water District vs. Tripp Ave. Housing Associates, LP, et.al.	Plaintiff moves this Court for a prejudgment possession of property owned by Defendant. Defendant did not file a written opposition to this motion within 30 days of being served by Plaintiff pursuant to CCP section 1255.410(a). Plaintiff's motion is GRANTED.
9:01 1-2	25CV469349	Jungseock DeJoo vs. Eli Alon, et.al.	Defendant Eli Alon's attorney David Tran moves to withdraw as counsel. Motion was not opposed. Motion is GRANTED. Defendant Alon Design and Remodeling, Inc.'s attorney David Tran moves to withdraw as counsel. Motion was not opposed. Motion is GRANTED.
9:01 3	19CV356679	Nai Saetern vs Marriott International, Inc.	Plaintiff moves this court for approval of compromise of claim for minor. In this case, Plaintiff Nai Saetern is the mother of Karma Lopez-Lang who is 15 years old. The minor Karma Lopez-Lang along with her mother Plaintiff Nai Saetern sued Marriott Hotel for injuries related to bed bugs in their hotel room. This action will be settled without trial. Plaintiff's motion for approval of compromise of claim for minor Karma Lopez-Lang is GRANTED.

Calendar Line 4

Case Name: Ahmad Tamkin et al. v. Tesla, Inc., a Texas Corporation

Case No.: 25CV467112

In this Song-Beverly Warranty Act case, defendant Tesla, Inc. (“Tesla”) moves to compel arbitration based on two agreements with plaintiffs Milaan Towing LLC and Ahmad Muneer Tamkin (“Plaintiffs”): (1) the Motor Vehicle Order Agreement (“MVOA”); and (2) the Retail Installment Sales Contract (“RISC”). As an initial matter, the Court notes that Milaan Towing LLC is not a party to the MVOA. The purported “sign-in wrap agreement” is only between Tesla and Ahmad Muneer Tamkin.

Tesla maintains the MVOA includes an integration clause and should be considered first. The integration clause provides: “If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance agreement.” (Declaration of Raymond Kim [“Kim Decl.”], Ex. 1 at p. 2.) However, “an integration clause only covers antecedent and contemporaneous agreements; it does not foreclose the possibility of future agreements.” (*In re Ins. Installment Fee Cases* (2012) 211 Cal.App.4th 1395, 1413-1414 [quoting *Nakashima v. State Farm Mut. Auto. Ins. Co.* (2007) 141 N.M. 239, 243].)

The MVOA was executed on March 31, 2024; whereas, the RISC was signed on April 3, 2024. Thus, the RISC is a later executed agreement and the integration clause of the MVOA does not preclude its application. Since both parties are signatories to the RISC, the Court considers whether Tesla may move to compel arbitration pursuant to this agreement.